



**Brand Name Limited-Sources Justification, Exceeding the Micro-purchase Threshold and up to the Simplified Acquisition Threshold, *DHS Analysis Legacy Accounting Tool - Migration and Maintenance***

REFERENCE: Justification Log Number: [REDACTED] and PR Number: [REDACTED]

**1. Agency and Contracting Activity.**

The Department of Homeland Security, U.S. Citizenship and Immigration Services (USCIS), Office of Contracting, proposes to award an *Order*, on behalf of the *Office of the Chief Financial Officer*, pursuant to FAR 8.405-6, Limiting Sources.

**2. Nature and/or description of the action being approved.**

USCIS intends to limit the Federal Supply Schedule (FSS) contractors solicited to a particular brand name product, or a feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer.

OCFO is transitioning to the new accounting and financial system—SAP S4/HANA—based on the schedule developed by the Department OCFO Office. USCIS will be the first of the five Cube Components (USCIS, ICE, DHS HQ (DMO, FPS), S&T, and CISA) to transition to SAP. The target date for the USCIS transition to S4/HANA is October 1, 2026. The transition can only be executed at the end of the fiscal year – once a year. Therefore, if the SAP migration is delayed and the cutover cannot be done, the schedule will be pushed exactly one year to FY28, i.e., October 1, 2027.

During the SAP configuration and migration execution, OCFO will continue to operate on the legacy systems, primarily FFMS and the associated suite of tools. The current operations cannot be disrupted as the agency must continue to operate as a solvent entity, paying its bills and executing other financial transactions.

Throughout the years, a set of tools has been developed in conjunction with the main financial system—FFMS—to compensate for system capability gaps. DHS Accounting Close & Reconciliation Tool (hereinafter referred to as DHS Analysis) is one of those tools.

The proposed source is Empirical Corporation currently located at 1199 N Fairfax ST STE 200 Alexandria, Virginia 22314-1442, United States. The category of sources are NAICS: 541211 – Offices of Certified Public Accountants and PSC: R703 – Support Management: Accounting. Empirical is designer, developer and owner of the software application and has not authorized any other resellers as of the current date. As a result, Empirical is the sole distributor of the software and related licenses. The vendor is available on GSA MAS contract GS-23F-0059U; however, the specific license required for the tool is not on the GSA contract. The GSA contract was used for verifying pricing to comparable services but will not be used for awarding the order.

### **3. Description of Supplies/Services.**

The Contractor shall provide USCIS with sufficient licenses (maximum of 25) for the OCFO staff to utilize the DHS Analysis tool during the duration of the task order.

The Contractor shall work with the OCFO Business Information Systems and Solutions (BISS) Division and the USICS Office of Information Technology (OIT) Engineering Infrastructure Division (EID) to install the tool and all its components on the infrastructure provisioned by OIT. The infrastructure will be provisioned in the USCIS cloud environment determined by OIT.

The Contractor shall provide BISS and OIT EID with the infrastructure specifications required for the tool to operate successfully. The Contractor will cooperate with BISS and OIT to properly install all tool components and restore all required connectivity to FFMS and other systems as required.

In addition, the Contractor shall cooperate with the OIT Information Security Division (ISD) to properly document the tool's security posture. USCIS will inherit this legacy tool with several security POA&Ms that might represent vulnerabilities for the agency. Taking into consideration that this is a legacy tool, the Contractor will cooperate and provide the necessary level of support to mitigate the security vulnerabilities to the maximum extent possible. The government will assign an Information System Security Officer (ISSO) to work with the Contractor. The ISSO will be responsible for the documentation, while the Contractor will be required to cooperate and provide the necessary information.

The Contractor shall maintain the tool compliant with any policy or regulatory changes that may impact how the USCIS OCFO must conduct accounting procedures. If such new policies or regulations are put into effect by USCIS, DHS, or the Federal Government overall, the Contractor will assess the necessary impact and implement the necessary changes to bring DHS Analysis into regulatory compliance.

The Contractor shall use its CPA expertise, in conjunction with its knowledge of the FFMS system, to provide targeted consulting services to USCIS OCFO staff to add Treasury Central Information Repository (CIR) and Central Accounting Repository System (CARS) data to allow for the establishment of an automated data workflow.

The Contractor shall use its CPA expertise and deep understanding of the current operations, in conjunction with its knowledge of the FFMS system, to provide targeted consulting services on how to configure USCIS accounts in the new accounting system. The configuration shall align with the needs of the USCIS accountants, OCFO leadership, and standard industry practices to ensure auditability and regulatory compliance.

This task required experience working with ICE and USCIS, knowledge of the intricacies of USCIS business, and the ability to understand the Standard General Ledger and the Accounting System, such that the new system can be configured to assist with monthly close in a timely fashion (ideally, one day). Note: The contractor is NOT responsible for configuring SAP S4/HANA. Under this task the Contractor will serve as an SME on the current process and will provide its expert opinion.

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The total dollar amount of proposed action is \$ [REDACTED] during a one year period of from March 14 2025 – March 13, 2026.

#### **4. Authority and supporting rationale.**

The proposed order will be placed or established under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies. Pursuant to FAR 8.405-6(b), this brand name specification must be used because of it being the only accounting analysis tool with compatibility to the current financial system, FFMS.

The results of recent market research indicate other companies' similar products lack the particular/unique feature(s) required and do not meet, or cannot be modified to meet, the needs of USCIS.

The tool to be acquired through this Task Order was developed specifically as an augmentation for the FFMS system to compensate for the lack of capability in FFMS. There is no other vendor or tool that is available on the market that can provide the same tool or capability at a better cost. For example, the tool has the ability to extract financial data every 15 minutes. The 15-minute refresh interval has not been achieved by any other vendor.

The task order includes the licenses for 25 users (minimum number of users) at \$ [REDACTED] per month/per user. The price was quoted by the vendor of the tool and is considered reasonable. Additionally, labor is considered. The Standard labor categories, including the tool administrator and consultant, were used for pricing. The rates were verified through the vendor's GSA MAS contract [MAS GS-23F-0059U](#).

There are no commercial or non-developmental items from other sources that can satisfy the need. The tool is proprietary in nature and was developed specifically for the systems in place at ICE. USCIS, as a service recipient from ICE, is put in the position of no alternatives. Redeveloping the logic and software will require more time and financial resources than permissible in the timeframe for which the product is needed.

#### **5. USCIS intends to post this requirement on GSA e-Buy pursuant to FAR 8.405-6(b)(3)(i)(A).**

#### **6. Contracting Officer Certification and Approval.**

I hereby determine that the circumstance(s) described herein exist and that the information is accurate and complete to the best of my knowledge.

[REDACTED]  
Contracting Officer

Date